No. 01-1196

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IN THE

Supreme Court of the United States

SIMON BALDERAS, *et al.*,
Appellants,
v.
STATE OF TEXAS, *et al.*,
Appellees.

On Appeal from the United States District Court for the Eastern District of Texas

MOTION TO AFFIRM

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MOTION TO AFFIRM

Pursuant to Supreme Court Rule 18.6, Appellee Brian Manley urges this Court to affirm the decision of a federal three-judge court establishing, after a full trial, the district lines for the 32 congressional districts allocated to the State of Texas. The district court properly rejected the argument that the Voting Rights Act required adoption of the Appellants' proposed configuration of districts in South Texas, which sought to squeeze a seventh majority-Latino district into that region by drawing districts stretching from the Mexican border far to the north and lowering the Latino share of the population in each district. The court recognized that Appellants' proposed districts were not sufficiently compact to trigger the requirements of section 2 of the

Voting Rights Act, and that they would have the effect of fracturing the Latino population to the point where its electoral power would be *reduced* rather than enhanced. Appellants have identified no significant legal issue raised by this case. Nor can they plausibly claim that the district court's conclusions lacked a strong basis in the evidence presented at trial.

STATEMENT OF THE CASE

The 2000 census revealed substantial population growth in the State of Texas. Much of the growth was fueled by an increase in the Latino population in all parts of the state, but the principal *areas* of growth were the Dallas/Fort Worth Metroplex and the greater Houston area. As a result of population growth, Texas gained two additional congressional seats, increasing its total from 30 to 32.

Congressional redistricting in Texas in 2001 followed a difficult procedural path. The Texas Legislature was unable to agree on a congressional redistricting plan during its regular session, ending on May 28, 2001. Even before the end of the legislative session, multiple lawsuits had been filed in both state and federal courts. Appellants (the Balderas plaintiffs) and Appellee (plaintiff Brian Manley) each filed suit alleging that the old 30-district congressional plan was unconstitutional. Following the teachings of this Court in *Growe v. Emison*, 507 U.S. 25 (1993), a three-judge federal court in the United States District Court for the Eastern District of Texas (Fifth Circuit Judge Higginbotham and District Judges Hannah and Ward) entered an order deferring the federal court litigation in order to allow the State, whether through a special legislative session or state court litigation, to construct a congressional redistricting

plan. The federal panel set a deadline of October 1, 2001, for the completion of the State's efforts, with a trial in federal court on any remaining federal law issues to commence on October 15, 2001. The October deadlines recognized that a final congressional redistricting plan needed to be in place by no later than November in order to avoid delaying any of the statutory deadlines in the State's election process. *See* Texas Election Code § 14.001 (requiring counties to distribute voter registration cards identifying each voter's precinct between November 15 and December 6).

Pretrial wrangling in state court ultimately required the Texas Supreme Court to determine which of two competing state trial courts properly had jurisdiction over congressional redistricting. *See Perry v. Del Rio*, No. 01-0728, 44 Tex. Sup. Ct. J. 1147, 2001 Tex. LEXIS 81 (Sept. 12, 2001). After that issue was resolved, trial began in an Austin state court on September 17, 2001, lasting two weeks. As the federal court deadline drew near, the three-judge court indicated its willingness to extend its deadline in order to allow the state trial court sufficient time to render its decision and impose a new redistricting plan. After rejecting all of the plans proposed by the parties, the state trial court in Austin proposed its own congressional plan, which it subsequently modified after receiving comments from the parties. *Del Rio v. Perry*, No. GN003665, Final Judgment (D. Ct. Travis County, Tex., 353d Judicial Dist., Oct. 10, 2001). With the federal court deadline already past and the three-judge court preparing for trial on the plan imposed by the state court, the Texas Supreme Court, on expedited appeal, vacated the state trial court's congressional plan on procedural grounds on October 19, 2001. *See Perry v. Del Rio*, No. 01-0988, 45 Tex. Sup. Ct. J. 52, 2001 Tex. LEXIS 98 (Oct. 19, 2001). Thus, almost three weeks after the federal court's initial

deadline, there was still no congressional plan for the State of Texas.

With the failure of the state legislative and judicial processes, the federal court was "left with the 'unwelcome obligation'" of drawing a congressional redistricting plan for the State of Texas. J.S. App. 1 (quoting *Connor v. Finch*, 431 U.S. 407, 415 (1977)). That obligation was even more daunting given the tight time constraints imposed by the state electoral process. The three-judge court commenced trial on October 22, 2001.[1] Trial lasted two weeks. Fourteen different parties presented more than 30 witnesses, including 10 expert witnesses, to testify about aspects of dozens of proposed congressional plans. In addition, thousands of pages of computerized data from the Texas Legislative Council were introduced into evidence, providing detailed electoral, demographic, and geographic information about the State of Texas and the array of plans before the court.

At trial, Appellants introduced into evidence no less than five proposed congressional redistricting plans. Plan 1123C – the plan Appellants highlight in their jurisdictional statement and appendix – was the fifth plan Appellants proposed to the federal court and was introduced after the close of their case. It was not the subject of testimony by any of their witnesses, nor was it available prior to trial for review by other parties' experts. Like the other plans Appellants presented, however, Plan 1123C creates seven

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[1] The congressional trial was the first of three held by the panel. After the close of evidence in that trial and while they were drawing the congressional plan, the panel held trial on the state house and senate redistricting plans. Appellee moves to affirm the judgment only with respect to the congressional part of the case.

districts in South and Central Texas (proposed Districts 15, 16, 20, 23, 27, 28, and 32) in which a majority of registered voters have Spanish surnames.[2] Two districts in that plan are of particular note. District 32 in Appellants' proposed plan runs in a narrow band from the Rio Grande River near the southernmost point in Texas past San Antonio into central Texas, northeast of Austin. District 15 is a similarly narrow district that also begins at the Rio Grande, stretching up and curving around to a point where it nestles under the Houston suburbs.[3] In three of the seven districts, the percentage of registered voters with Spanish surnames is reduced to between 50% and 52%. In one of those, the percentage is 50.1%. J.S. App. 43-45.

At trial in the congressional case, Appellants offered no evidence to support the proposition that any of the plans they proposed would actually provide an improved opportunity for Latino voters to elect candidates of their choice. Indeed, the evidence adduced at trial indicated that lowering the rate of Spanish-surname registration to 50% would likely cause Latino-preferred candidates to lose. This result would arise because (1) there is severe polarization in voting patterns between Latino and non-Latino voters in South Texas, and (2) Latino registrants turn out at substantially lower rates than non-Latino registrants. In essence, the trade-off that Appellants advocated was to replace six districts where

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[2] Appellants also advocated for the creation of a district in Dallas County that would be 51.1% Latino in voting-age population, although only 24.7% of the registered voters in that proposed district would have a Spanish surname. J.S. App. 45. It was conceded that creation of this district was not compelled by the Voting Rights Act.

[3] Although Appellants did not include the map of Plan 1123C in their appendix, it is attached to this motion. *See* Manley Appellee's Appendix (M.A. App.) 1a.

Latino voters would have a reasonable opportunity to elect candidates of their choice with seven districts, some of which were likely to produce defeats for Latino-favored candidates. Appellants urged this trade-off by suggesting that "effectiveness" – *i.e.*, whether particular remedial districts were likely to result in the election of candidates of choice of minority voters – is all but irrelevant under the Voting Rights Act.

On November 14, 2001, the district court handed down a unanimous *per curiam* opinion, adopting a congressional redistricting plan that the panel had drawn. J.S. App. 1-16. The court's opinion explained in detail the process the court went through in crafting the new plan. Faced with multiple, competing approaches to drafting a plan, the court adopted a process described at trial by Professor John Alford, a Rice University professor of political science. J.S. App. 4-9. That process – intended to draw lines in a politically neutral way consistent with traditional redistricting principles – had not been used by any of the parties to the litigation, including the State of Texas, for whom Dr. Alford was testifying. The court found, however, that this method was "most appropriate for our judicial task." J.S. App. 5.

The court thoroughly detailed the process it engaged in, including the sequence of its decisions. The court first preserved the existing districts that are protected by the Voting Rights Act in order to ensure that there would be no retrogression in minority voting strength. J.S. App. 5. The court thus maintained six Latino majority districts in South Texas, as well as a Latino majority district in Houston, and preserved African-American opportunity districts in Houston and Dallas. Second, the court located new congressional seats in areas of the highest growth. That dictated placing

new districts in the Dallas/Fort Worth Metroplex area (District 32, in the north Dallas suburbs) and in the greater Houston area (District 31, in the corridor between Harris and Williamson Counties). J.S. App. 5-6. The court then filled out the rest of the plan with districts that roughly corresponded to the historic locations of districts, as drawn by the Texas Legislature in previous decades. J.S. App. 6-7. In so doing, the court emphasized compactness and attempted to follow local political boundaries. *Id.* Finally, once the plan was complete, the court checked to make certain that it had not inadvertently favored either political party. J.S. App. 8-9.

The court expressly addressed Appellants' argument that it should create an additional majority-Latino district in South Texas, stating that "the evidence shows that the Latino population is not sufficiently compact or numerous to support another, effective majority-Latino citizenship district . . . in South Texas." J.S. App. 14. The court thus rejected this claim under both the first prong of the test in *Thornburg v. Gingles*, 478 U.S. 30, 50-51 (1986), because the proposed districts were not sufficiently compact, *and* under the "totality of circumstances," *see* 42 U.S.C. § 1973(b), because there was no evidence demonstrating that Appellants' proposed districts were likely to result in Latino voters being able to elect Latino-preferred candidates. The court concluded that a six-district configuration, allowing higher percentages of Latinos in each district, would result in "full and equal Latino participation in the political process." J.S. App. 15.

ARGUMENT

Appellants have identified no plausible basis for overturning the congressional redistricting plan drawn and unanimously approved by the three-judge court. After a full trial in which the court received what Appellants acknowledge was "abundant" evidence concerning the possibility of creating an additional majority-Latino congressional district in South Texas, the three-judge court found "that the Latino population is not sufficiently compact or numerous to support another, effective majority-Latino citizenship district in . . . South Texas." J.S. App. 14. It concluded that, "under the totality of the circumstances, the failure to create seven such districts will not prevent full and equal Latino participation in the political process" and thus was not a violation of section 2 of the Voting Rights Act. J.S. App. 15. Appellants mount a number of factual and legal attacks on this straightforward conclusion, but none holds water.

First, Appellants' argument that the district court distorted the three-pronged test set forth in *Thornburg v. Gingles* simply mischaracterizes what the court below said. Appellants argue that the court erred in rejecting their claim that they had satisfied the first prong of *Gingles*, which requires a section 2 plaintiff to show that it is physically possible to create an additional reasonably compact minority district. They further argue that they satisfied this requirement by offering maps showing how to create an additional district with a bare majority of Spanish-surname registered voters.

But the district court did not in fact address the question whether a court should look to voter registration data, voting-

age population (VAP) data, or citizen voting-age population (CVAP) data in analyzing *Gingles'* first prong. It found that Appellants had failed to demonstrate the possibility of creating a seventh "effective" majority-Latino district, and it therefore rejected Appellants' section 2 arguments at a later stage of the analysis – the final assessment of the "totality of circumstances." *See* 42 U.S.C. § 1973(b). This finding was compelled first by the absolute lack of evidence in the record to support a claim that an additional effective district could be drawn. Appellants, apparently confident in their legal argument that likely electoral outcomes are irrelevant under section 2, introduced absolutely no evidence to suggest that the spread-out districts they proposed would actually give Latino voters a realistic opportunity to elect their preferred candidates in an additional district. And the evidence introduced by other parties supported the conclusion that the combination of high polarization in voting patterns and low turnout among Latino registered voters meant that Latino-preferred candidates stood a very good chance of losing in a district with a bare majority of Latino registered voters. *See infra* Point I.

Second, to the extent that the district court did address the first prong of *Gingles*, it rejected Appellants' section 2 claim on the separate and independent ground that Appellants had failed to satisfy that threshold requirement because their proffered districts were not "sufficiently compact." J.S. App. 14. Appellants argue that the court applied this requirement too strictly, but they fail to append their actual map corresponding to the data set forth in their appendix. An examination of that map reveals that they were asking the district court to create a series of long thin districts, including two that would have originated at the Mexican border and stretched to the outskirts of Austin and Houston, respectively.

While it may be true that these districts' "compactness scores" – at least on one measure of compactness – were no worse than those of the least compact districts previously created by the Texas Legislature (which were the subject of this Court's review in *Bush v. Vera*, 517 U.S. 952 (1996)), that is not the appropriate test for determining whether a federal court is compelled by the Voting Rights Act to adopt such districts when drawing a plan following a legislative deadlock. Rather, the district court was correct in determining that districts that stretch for hundreds of miles for the sole purpose of reaching a 50.1% quota of Spanish-surname registered voters are not compelled by the Voting Rights Act. *See infra* Point II.

Third and finally, Appellants' critique of the thoroughness of the district court's factual findings provides no conceivable basis for reversal and is particularly unpersuasive given the exigent circumstances under which the federal court was acting, due to the impending election deadlines and the complete failure of the state legislative and judicial processes to produce a congressional district plan. Here, the trial court's opinion makes clear why it did what it did and why it rejected Appellants' claim. Especially given Appellants' total lack of proof that the districts they proposed would actually create realistic electoral opportunities for Latino voters, no more is required. *See infra* Point III.

I. THE DISTRICT COURT DID NOT ERR IN REQUIRING A SHOWING THAT IT WAS POSSIBLE TO CREATE SEVEN "EFFECTIVE" MAJORITY-LATINO DISTRICTS.

Appellants argue that the Voting Rights Act compels courts to ignore whether proposed remedial districts will

actually offer minority voters a realistic opportunity to elect their preferred candidates. Rather, Appellants claim that one only need look at demographics: If a proposed district is at 50.1% or more in terms of Spanish-surname registration, then the district must be created, regardless of the actual impact on Latino voters. That is manifestly wrong. It would be a strange interpretation of the Voting Rights Act indeed to read it as requiring creation of an additional majority-minority district where a careful examination of the totality of the circumstances makes clear that doing so would actually *reduce* the political power of the protected class.

A. Section 2 Requires an Inquiry into the Actual Opportunities of Minority Voters to Elect Candidates of Their Choice, Not a Bright-Line Test.

In *Thornburg v. Gingles*, 478 U.S. 30 (1986), this Court's first examination of vote-dilution claims under amended section 2 of the Voting Rights Act, the Court admonished trial judges to appraise the "totality of circumstances" and conduct a "searching practical evaluation" based on a "functional view of the political process." 478 U.S. at 45, 77-79 (citations and internal quotation marks omitted). There is no bright-line test based on population statistics. Rather, a court must determine whether the challenged districts actually dilute the voting strength of minority voters and, concomitantly, whether a proposed remedy will actually enhance minority electoral opportunities. *See id.*

Eight years later, in *Johnson v. De Grandy*, 512 U.S. 997 (1994), the Court emphasized once again the need for a functional analysis of electoral opportunities. It rejected the

section 2 claims of Latino plaintiffs because Latinos "constitute[d] *effective* voting majorities in a number of . . . districts substantially proportional to their share in the population." 512 U.S. at 1024 (emphasis added). The Court reasoned that such rough proportionality is a strong "indication that minority voters have an equal opportunity, in spite of racial polarization, 'to participate in the political process and to elect representatives of their choice.'" *Id.* at 1020 (quoting Section 2). In so doing, the Court made clear that courts should look at "effective" or "functional" voting majorities, rather than relying entirely upon strict demographic tallies such as "50% Latino VAP" or "50% Spanish surname." *See, e.g., id.* at 1000 ("effective voting majorities"); *id.* at 1004 ("a functional majority of Hispanic voters"); *id.* at 1014, 1021, 1023 n.19 ("an effective voting majority"); *id.* at 1017 ("districts in which minority voters form an effective majority"); *id.* at 1024 ("an effective majority"). And the Court defined a district with an "effective voting majority" as one "with a sufficiently large minority population to elect candidates of its choice." *Id.* at 1008.

These cases thus teach that probable *effectiveness* – not simplistic arithmetic tallies – is the key to a proper application of the Voting Rights Act. In that Act, Congress sought to ensure minority voters *actual opportunities at the polls*, and it asked the courts to take on the sensitive and sometimes difficult task of determining whether a given districting scheme in fact is diluting minority voting strength either by unduly "packing" minority voters into too few districts or by unduly "fracturing" them into too many. *See Gingles*, 478 U.S. at 46 & n.11.

Other federal courts have also recognized a need for a "functional" evaluation, examining a variety of practical considerations, including differential rates of turnout, when considering the validity of a section 2 claim under the "totality of circumstances." For example, in *Ketchum v. Byrne*, 740 F.2d 1398 (7th Cir. 1984), the Seventh Circuit held that a district court "must carefully consider and evaluate the data concerning voter registration *and turn-out* in the black and Hispanic communities to determine the practical need for a super-majority of the respective minority groups in order to give the minorities a reasonable and fair opportunity to elect candidates of their choice." *Id.* at 1414 (emphasis added). "There is simply no point," the court explained, "in providing minorities with a 'remedy' for the illegal deprivation of their representational rights in a form which will not in fact provide them with a realistic opportunity to elect a representative of their choice." *Id.* at 1413; *see also Barnett v. City of Chicago*, 141 F.3d 699, 702-03 (7th Cir. 1998) (discussing low black turnout and citing *Ketchum*, 740 F.2d at 1413-16), *cert. denied*, 524 U.S. 954 (1998); *African American Voting Rights Legal Defense Fund, Inc. v. Villa*, 54 F.3d 1345, 1348 n.4 (8th Cir. 1995) (same), *cert. denied*, 516 U.S. 1113 (1996); *Overton v. City of Austin*, 871 F.2d 529, 542 (5th Cir. 1989) (Jones, J., concurring) ("It would be a Pyrrhic victory for a court to create a [majority-minority] district in which [the] minority population . . . continued to be defeated at the polls."); *Romero v. City of Pomona*, 883 F.2d 1418, 1425 & n.13 (9th Cir. 1989) ("Raw population totals are relevant only to the extent that they reveal whether the minority group constitutes an *effective voting majority* in a proposed single-member district given such factors as low voter registration and turnout patterns.") (internal citation omitted) (emphasis added).

This is not to say that majority-minority districts proposed by plaintiffs in section 2 cases must always have a population that is more than 50% minority. "[T]he question of the size of the majority necessary to ensure the likelihood of success at the polls cannot be determined by a set formula, but must be evaluated on a case-by-case basis according to the political and other characteristics of the relevant population." *Monroe v. City of Woodville*, 819 F.2d 507, 510 n.1 (5th Cir. 1987) (citing *Ketchum*). In some places, because of turnout rates and crossover voting patterns, a district can be "effective" even if African-Americans or Latinos constitute substantially less than 50% of the population. *See Page v. Bartels*, 144 F. Supp. 2d 346, 362-66 (D.N.J. 2001) (three-judge court) (finding that districts with less than an African-American majority may provide a realistic opportunity to elect candidates of choice for African-Americans). *But see Valdespino v. Alamo Heights Indep. Sch. Dist.*, 168 F.3d 848, 852-53 (5th Cir. 1999) (holding that there can no violation of section 2 unless the protected group constitutes at least a majority of a reasonably compact district), *cert. denied*, 528 U.S. 1114 (2000). But in other places with high polarization and differential turnout rates, a bare majority may not be enough.

B. Appellants Made No Effort to Prove that Their Proposed Districts Would Give Latino Voters a Reasonable Opportunity to Elect Candidates of Their Choice.

The record in the trial court is devoid of evidence to suggest that the seven congressional districts proposed by Appellants would be effective for Latino voters. That is because Appellants chose not to introduce *any* evidence in the congressional portion of this case concerning

effectiveness, gambling instead on winning the argument that section 2 requires creation of an additional majority-Latino district whenever that is shown to be physically possible. Appellants' expert, Dr. Richard Engstrom, looked at the issue of racially polarized voting, but provided no testimony on the question whether the districts Appellants sought to create would actually provide Latino voters with a reasonable opportunity to elect candidates of their choice.[4]

Other parties did, however, address that question. There was ample evidence at trial that turnout among Latino registrants in the South Texas region was far lower than turnout of Anglo registrants. Indeed, even where Latinos comprise 60-65% of all registered voters, Anglos often constitute a majority of *actual* voters on Election Day and thus are able to control the outcome. M.A. App. 21a; 5a-6a. All of the experts who testified agreed that one district in the 1990s with a 53.2% Spanish surname registration level had regularly elected the Anglo-preferred candidate over Latino-preferred candidates. *See, e.g.*, M.A. App. 18a. As a result, the practical effect of spreading Latino voters among seven districts is to "marginalize" the districts, risking that Latino voters will not have a legitimate opportunity to elect a preferred candidate in at least two of the seven districts. M.A. App. 17a-18a; 2a-4a. As one expert witness, Dr. Allan Lichtman, explained based on examination of past election results, while some of the seven districts proposed by Appellants would be effective in allowing Latino voters an opportunity to elect preferred candidates, other districts

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[4] In their post-trial proposed findings, Appellants' "evidence" on effectiveness consisted only of citations to two exhibits not sponsored by any expert and to their cross-examination of Dr. Lichtman, who testified that two of the seven districts Appellants proposed were marginal.

would at best be marginal, creating a very real possibility that the districts would obstruct, rather than enhance, minority representation.[5] *Id.*

The court also heard powerful testimony from Congressman Charlie Gonzalez, who represents District 20 in San Antonio. Congressman Gonzalez testified that districts with Spanish-surname registration at or just above 50% would not be winnable districts for Latino-preferred candidates. M.A. App. 7a. He explained how Appellants' proposals, far from improving the electoral opportunities of Latino voters, would actually decrease them by spreading Latinos so thinly that they would not have a reasonable chance to elect their preferred candidates. M.A. App. 8a-9a.

Faced with no evidence to justify the districts proposed by Appellants – and strong evidence that suggested that to create those districts would actually detract from the goal of minority political opportunity – the district court was wholly correct in rejecting Appellants' argument.

In drawing remedial districts, the court, like a State, "must have 'a *strong* basis in evidence' for finding that the threshold conditions for § 2 liability are present." *Bush v. Vera,* 517 U.S. at 978 (quoting *Gingles*, 478 U.S. at 50-51); *see also Abrams v. Johnson*, 521 U.S. 74, 91 (1997). No such evidence was before the district court, and it was correct in refusing to create the districts demanded by Appellants.

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[5] Not surprisingly, one of the groups of Latino intervenors in the trial court argued strongly against the creation of seven Spanish-surname majority districts in South Texas. M.A. App. 10a-11a.

II. THE DISTRICT COURT CORRECTLY ASSESSED THE COMPACTNESS OF APPELLANTS' PROPOSED DISTRICTS.

Appellants also attack the district court's compactness ruling, arguing that the court "failed to apply *any* legal standard" in determining whether the Latino population was sufficiently compact to justify the creation of seven – rather than six – majority-Latino districts. J.S. 18 (emphasis added). That is simply untrue. The court was fully able to examine the districts proposed by Appellants in their effort to satisfy the *Gingles* factors, and it reached the appropriate conclusion that Appellants had failed to demonstrate the possibility of creating an additional reasonably compact Latino majority district.

This Court has made clear that section 2 does not require a State (or likewise a court) to create, on predominantly racial lines, a district that is not "reasonably compact." *Bush v. Vera,* 517 U.S. at 979 (plurality op.) (*citing Johnson v. DeGrandy*, 512 U.S. at 1008 (1994)); *see also Abrams v. Johnson*, 521 U.S. at 91 ("Here the District Court found, without clear error, that the black population was not sufficiently compact for a second majority-black district. . . . So the first of the *Gingles* factors is not satisfied."). Under *Gingles*, section 2 is not violated if a reasonably compact minority district cannot be drawn. And under *Shaw*, noncompact districts that are drawn for the predominant purpose of attaining a particular racial composition presumptively violate the Fourteenth Amendment. *See Bush v. Vera*, 517 U.S. at 969-72 (plurality op.) (invalidating a noncompact district that had been intentionally drawn to meet a target of 50.1% African-American population).

The district court properly applied this Court's dictates and avoided the specter of districts that violate the Fourteenth Amendment. Specifically addressing the Appellants' proposal for an additional Latino district, the court correctly noted that it was not required to create a majority-minority district where sufficient compactness was lacking, J.S. App. 9-14, and found that Appellants had not satisfied the compactness requirement in the first prong of *Gingles*.

This finding is amply supported by the record. In evaluating whether a district is sufficiently compact for section 2 purposes, "[d]istrict shape is not irrelevant." *Bush v. Vera*, 517 U.S. at 980 (plurality op.). An examination of the Appellants' proposed districts indicates they were asking the court to create very long and noncompact districts, including two that would have originated at the Mexican border in far-southern Hidalgo County, stretching from there to the outskirts of Austin and Houston, respectively.[6] Moreover, the record further indicates that the districts were drawn in order to achieve a precise race-based target – 50.1% of Spanish surname registered voters; indeed, three of the 7 districts have Spanish surname registrations of less than 52% and one is exactly 50.1%. J.S. App. 43-45. One expert witness testified that, while disregarding traditional redistricting principles and subordinating compactness, the majority-minority districts proposed in Appellants' Plan 1123C divided counties and cities on the basis of race, shifting Latino precincts into Latino districts and Anglo

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[6] In addition, Texas Lieutenant Governor Ratliff, who himself drew and submitted to the court a plan that sought to comport with neutral principles, including compactness and respect for county and city lines, testified that he attempted to draw an additional majority-Latino district in South Texas, but found it impossible without wholly forgoing compactness and engaging in racial gerrymandering. M.A. App 12a-13a.

precincts into Anglo districts. M.A. App. 15a. Given this record, the trial court did not abuse its discretion in finding these districts noncompact and refusing to create them.

Appellants' argument that its proposed Latino districts were more compact than other Texas districts in the 1990s, *see* J.S. 19-20, is a red herring. The congressional districts formerly existing in Texas were the product of the state legislative process, which had the flexibility to create less compact districts – or even bizarre districts – for reasons unrelated to race. *See Bush v. Vera*, 517 U.S. at 964-65 (plurality op.) (State may draw irregular district lines in order to allocate seats proportionately to major political parties); *id.* at 977-78 ("Under our cases, the States retain a flexibility that federal courts enforcing § 2 lack, both insofar as they may avoid strict scrutiny altogether by respecting their own traditional districting principles, and insofar as deference is due to their reasonable fears of, and to their reasonable efforts to avoid, § 2 liability."). But a court may not draw noncompact districts and subordinate other traditional redistricting principles where the goal is to create districts matching a particular racial or ethnic quota.

Similarly unavailing are the Appellants' compactness comparisons to the remedial districts created by a Texas district court in 1996 as well as other districts in the very map adopted below, *see* J.S. 19-20. Even if some of those districts are less compact than some of the Latino districts proposed by Appellants, such an observation proves nothing, given that those districts were the product of non-racial, neutral factors – unlike those urged on this Court by Appellants. *See Vera v. Bush*, 933 F. Supp. 1341, 1348 (S.D. Tex. 1996) (three-judge court) (noting primary factors of compactness and contiguity, as well as an attempt to

minimize the impact on surrounding congressional districts); J.S. App. 4-9 (where lower court explained that it "did not depart from our neutral factors to draw any district not required by law [*i.e.*, the Voting Rights Act]"). Moreover, although the long, narrow districts proposed by Appellants do not score terribly on the perimeter-to-area measure highlighted by Appellants in their jurisdictional statement, they fare worse on another standard measure of compactness (the "smallest circle" measure), which measures the ratio of the district's area to the area of the smallest circle that can circumscribe the district. On the latter measure, Appellants' proposed District 32 was the least compact district of any plan considered at trial and less compact than any district from the 1990s congressional plan in Texas.[7]

Clearly, the court below applied the correct legal standard in determining that the Appellants' proposed districts were not sufficiently compact to support a section 2 violation.

III. THE DISTRICT COURT WAS NOT REQUIRED TO ISSUE MORE EXTENSIVE FINDINGS OF FACT.

In a last-ditch effort to overturn the ruling below, Appellants allege a Rule 52(a) violation, claiming that the court below failed to support its judgment with findings sufficient for appellate review. *See* J.S. 20-26 (citing Fed. R.

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[7] Plan 1123C fares poorly on other redistricting criteria as well. It pairs 6 incumbents, even though Texas received two additional congressional seats. It also splits 17 more municipalities than the plan adopted by the court below, and preserves the cores of existing districts significantly less well than the plan adopted. *See Abrams v. Johnson*, 521 U.S. at 92 ("§ 2 compactness inquiry should take into account" other traditional redistricting criteria).

Civ. P. 52(a)). But under that rule, the court "need only make brief, definite, pertinent findings and conclusions upon the contested matters; there is no necessity for over-elaboration of detail or particularization of facts." Advisory Committee Notes to Fed. R. Civ. P. 52(a). Rule 52 is satisfied if the district court's findings give the reviewing court a clear understanding of the factual basis for the decision. *Burma Navigation Corp. v. Reliant Seahorse MV*, 99 F.3d 652, 657 (5th Cir. 1996). Indeed, unlike Appellants' seeming request, Rule 52(a) "exacts neither punctilious detail nor slavish tracing of the claims issue by issue and witness by witness." *Id.* (internal quotation marks omitted). The explicit mandates and purpose of Rule 52(a) do not suddenly change within the context of Voting Rights Act cases, despite the "intensely local appraisal" the lower court must make. *See* J.S. 20 (quoting *White v. Regester*, 412 U.S. 755, 769-770 (1973)).

The district court operated under tremendous time pressures in performing its complex and enormous task. Moreover, unlike in an ordinary section 2 case, where there are specific districts being challenged, here the court was tasked with drawing an entire 32-district congressional plan for the State of Texas. The court heard expert and lay testimony on myriad plans, which it then had to distill in order to draw its own plan.

The court did its job thoroughly and completely. In this case, the court clearly described the methodology it used, the expert testimony upon which it relied, the specific factors it used to draw the districts, the sequence of these factors, and the manner in which it checked whether the plan was detrimental to either political party. *See* J.S. App. 1-9. Following that analysis, the court explained its understanding

of Appellants' claim, and examined that claim under the appropriate legal rubric, dispositively finding that "the Latino population is not sufficiently compact or numerous to support another, effective majority-Latino citizenship district in . . . South Texas." *Id.* at 9-14. The district court clearly supplied this Court with an appropriate roadmap for appellate review.

Appellants' reference to this Court's summary remand in a 1993 Voting Rights Act case, *Statewide Reapportionment Advisory Committee v. Theodore,* 508 U.S. 968 (1993), is wholly inapposite. *See* J.S. 21. In that case, the issue was whether the trial court had applied the right *statute*; the United States sought a remand (which was granted) because the district court errantly thought the litigation arose under section 5 of the Act rather than section 2, and thus made "no such dispostive finding with respect to any of the *Gingles* threshold requirements." *See* Brief for the United States as Amicus Curiae at 9, 12, *Statewide Reapportionment Advisory Committee v. Theodore*, 508 U.S. 968 (1993) (Nos. 92-155 and 92-219). That is certainly not the case here. The court below clearly indicated its application of section 2 of the Voting Rights Act, as well as the *Gingles* three-part test in finding that the Appellants failed to meet both the first prong of the *Gingles* test, as well as the "totality of circumstances" test. *See* J.S. App. 9-15. Moreover, given that "failure to establish any one of the *Gingles* factors precludes a section 2 violation," *see LULAC v. Roscoe Ind. Sch. Dist.*, 123 F.3d 843, 847 (5th Cir. 1997) (internal quotation marks omitted), the district court was under no obligation "to expressly mention all the evidence in its opinion." *Id.* at 846.

Even if the district court's findings lack some detail, as Appellants' allege, vacatur and remand is inappropriate

where remand proceedings are unlikely to "add anything essential to the determination of the merits." *Withrow v. Larkin*, 421 U.S. 35, 45 (1975); *see LULAC v. Roscoe Ind. Sch. Dist.*, 123 F.3d at 847 (although "the district court's discussion of statistical data in this case or . . . was closemouthed at best, there are no grounds to remand *given the evidence at trial*") (emphasis added). In this case, where a simple look at the map (appended to this motion at M.A. App. 1a) indicates the lack of compactness and where Appellants chose not to adduce any evidence on the dispositive issue of effectiveness for Latino voters, vacating and remanding is clearly inappropriate.

CONCLUSION

This Court should summarily affirm the District Court's judgment with respect to its establishment of a congressional districting plan for the State of Texas.

Respectfully submitted,

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APPENDICES



BEST AVAILABLE COPY

APPENDIX A

TEXAS
U.S. Congressional Districts
Proposed Plan - PLAN 01123 C



APPENDIX B

IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF TEXAS
TYLER DIVISION

SIMON BALDERAS, ET AL	*	CIVIL ACTION NO.
	*	
	*	6:01-CV-158
VS.	*	
	*	Austin, Texas
	*	
	*	
STATE OF TEXAS, ET AL	*	

(This Filing Applies to all Actions)

TRANSCRIPT OF BENCH TRIAL
BEFORE
THE HONORABLE PATRICK E. HIGGINBOTHAM,
THE HONORABLE JOHN HANNAH, JR.
AND
THE HONORABLE T. JOHN WARD

* * *

October 23, 2001, Morning Session

[Testimony of Dr. Allen J. Lichtman]

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1 The second group of plans reconstitute
2 District 23 and create in effect a new effective Hispanic

opportunity district in South and West Texas. Sometimes it is labeled District 31. Sometimes it is labeled District 32. In the configurations of plans that I looked at, it was a district that certainly would easily nominate an Hispanic candidate, and it was a district with sufficient Democratic strength and sufficient history of electing Hispanic candidates to provide Hispanics a reasonable opportunity to elect candidates of their choice. And so a whole series of plans, 1055C Laney II, 1102C, Mayfield I, 1097C, Mayfield II, 1021C, Laney I, 1034C, DeLay, 1089C, Davis II, and 1065C, Dav is I by creating this new district, by my count had six effective opportunity districts in South and West Texas.

Q. You said there was a third category as well?

A. Yes, and that category is uniquely occupied by one plan and that was the Balderas plan which in our enumeration is 1099C.

This is the one plan that attempts to create not six but seven Hispanic opportunity districts in the South and West Texas region.

JUDGE HIGGINBOTHAM: How do you see the 23rd. That is not an effective Hispanic district, correct?

THE WITNESS: As configured by the Balderas Plan.

JUDGE HIGGINBOTHAM: What about today?

THE WITNESS: Today it is not an effective Hispanic district. And as configured by the Balderas Plan it's a little stronger, but I still put it in – that is one of the halfs under the Balderas Plan I put it

in the gray area. If you will look at the three recent –

JUDGE HANNAH: One of those halfs are in Dallas?

THE WITNESS: No both of those halfs are South and West Texas, District 23 is in South and West Texas.

* * *

October 25, 2001, Morning Session

* * *

[Testimony of Dr. Richard Murray]

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* * *

Q. I want to go back to San Antonio, but let's take a hypothesis district that has HVAP of 62.3, SSVR of 55, and 54.1 percent on the DEM index. You have a bump in Spanish surname voter registration, correct?

A. Yes. In this hypothetical, yes.

Q. In your opinion, would this district that improves the number of registered voters in the district create a reasonable opportunity for Hispanics to elect?

A. I certainly want to look at the actual performance of the territory that's in this district and what is the voter turnout in recent elections from the Hispanic community.

JUDGE HIGGINBOTHAM: It's the failure of the Hispanic registered voters who actually vote that you are pointing to?

THE WITNESS: There is certainly lower Hispanic voting across South Texas and particularly in

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this district than Anglo voting, and for a great variety of reasons. But since that is failure, yes.

JUDGE HIGGINBOTHAM: What it comes down

to, you are saying that Hispanics are simply not voting, correct?

THE WITNESS: Hispanic voters are voting at lower levels than Anglo registered voters, yes.

* * *

October 25, 2001 Afternoon Session

* * *

[Testimony of Congressman Charlie Gonzalez]

that you are one of those kids now. But truly, it was a wonderful experience, Judge. That only lasted a year I have to admit, Judge, I am under oath. It lasted a year and I knew I should go to law school immediately.

Q. (By Mr. Smith) What was your job right before you became a member of Congress?

A. I was a State District Court Judge.

Q. Turning back to Balderas Exhibit 103, Map 1110, the evidence shows that this District 20 in Map 1110 is 57.5 percent Hispanic, and the Spanish surnamed registered voters total goes down to 50.5, just over 50 percent. Do you have a view about whether a district with those kinds of demographic characteristics would be an effective version of District 20, an effective Hispanic opportunity district?

A. I believe that it would be ineffective, and it would not be a competitive district for a Hispanic.

Q. Can you explain the reasons for that, please?

A. Well, it is always going to be voter turnout. I mean, if it's marginal at this point you drop from 58 percent to 50.5 percent Spanish surnamed registered voters. It would be wonderful if they all voted, and they all voted a certain way. But the whole thing is that voter turnout has been a consistent problem for many reasons, some have been discussed earlier. And it

will take some time, and how long I don't know, but hopefully we will improve on it, at the present time and for the foreseeable future, I don't see any real tremendous changes on election day. So that does not translate very well.

A greater consideration and aggravating the situation is it basically cut my district at Highway 90, and everything south of that which is heavily Hispanic and has been a core constituency of the 20th Congressional District since time immemorial is taken away. What they replace it with is the northwest sector of San Antonio which is highly, highly Republican and does constitute an Anglo voting bloc.

Q. Who represents that portion of San Antonio?

A. I believe that is Congressman Bonilla, and in the earlier testimony it referred to as to what makes him viable? How has he existed all these years? Well, it is thanks in great part to the voters that this particular map will be best upon the 20th Congressional District.

Q. What do you think are the chances that a district with a 50.5 percent registration rate of Hispanics would have a majority of Hispanics voting in any given election?

A. I just don't see it. Now, I know there is –

we will have this disagreement with others, but I don't see that the numbers are there to actually substantiate that you can go down to 50.5 Spanish surnamed registered voters and be competitive.

* * *

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Q. And your testimony to the Court is that under the plan that has been suggested by the Balderas Plaintiffs that 50 – I believe it's 56 percent?

A. The Valdez plan?

Q. Yeah, 50.1 percent is not enough to get you elected?

A. 51.2 percent Spanish surname standing alone is not a viable, effective competitive Latino district.

Q. That's not an exaggeration?

A. That is not an exaggeration. Otherwise, we would just go and dilute every one of these districts as long as it's over 50 percent and we would say a Latino can win. When we know that voter turnout is not the same and there is a tremendous – it's painful to say, but there is an Anglo voting bloc that outperforms – outperforms anything else, maybe even gender.

* * *

October 29, 2001, Afternoon Session

[Testimony of Juanita Valdez-Cox]

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* * *

BY MS. PERALES:
Q. Good afternoon, Ms. Valdez-Cox.
A. Good afternoon.
Q. My name is Nina Perales, and I represent the Balderas/Torres/Texas LULAC plaintiffs in this case.
I'm going to ask you a hypothetical question: Assuming that it is possible to draw two Congressional districts emanating from Hidalgo County, and both of those districts would have a majority of Latino registered voters and both of those districts would effectively elect a Latino candidate of choice, wouldn't it be better to have two districts instead of one?
A. You know, the problem with that situation is that I know how difficult it is to elect one. I know how difficult it is to get those people – the low-income

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people to be involved – actively involved in politics and participate. I stated earlier it's hard enough to walk all the streets and knock on all those doors. And then after that, making sure that they get out to vote the day of the election. That is hard work.
And to have a membership or the area of South Texas. And then to think that you have to – as

far as this area goes, and with – let's say like you are saying two districts that run up. Knowing how far north – not knowing how far north it might go, even, you know, their interests would then change. Immigration in South Texas with whatever else is up there, what are the interests that we would have in common?

I just think that to do that also, I think, would be like taking a chance that we may or that we may not, when in Hidalgo County it's –

Q. It's more safe, I understand.

A. Sure.

* * *

October 31, 2001, Afternoon Session

* * *

[Testimony of Lt. Gov. William R. Ratliff]

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* * *

Q. You talked about in the state court trial, other parties and parties who testified here about trying to create another Hispanic district either in the southern sector of Texas or Dallas/Fort Worth. When you were at REDAPPL drawing your plan, did you try as best you could to draw another Hispanic district in Dallas/Fort Worth?

A. I tried to see how you would go about it, yes.

Q. What was your conclusion?

A. I decided that you could not do it unless you destroyed – virtually destroyed the current make-up of District 30 which was one of my concepts that I didn't intend to do.

Q. Did you try to draw another Hispanic district in the southern sector of Texas.

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A. I did.

Q. Can you tell the Court what happened in that regard in that effort?

A. I saw no way to create another Hispanic district down there with – this is not the current.

Can you put 1000 up?

If you will notice – if you will notice 28, 15, 27, they all start in the Lower Rio Grande Valley

and come in long fingers up into the center of the State trying to take that massive Hispanic population and spread it north in order to – in order to increase the number of Hispanic districts.

Well, to add another one, you have to exaggerate that even more and you would have to actually go up in widths that would be less than countywide widths in order to try to spread the population to the north. To me it was a good illustration of what I thought would be a definition of racial gerrymandering, so I decided that I would not propose it.

* * *

November 1, 2001, Morning Session

* * *

[Testimony of Dr. Ronald E. Weber]

A. Yes, I understand. And the response is yes.
Q. Since they have the requisite population to be a majority, do you find –
A. The implication of that is that those would be a citizen voting age majority districts. Once we get the citizen voting age population based on Spanish surnamed, we would expect to find those being citizen VAP Hispanic majority districts.
MR. SUDAN: Could you bring up Map 1123?
Q. (By Mr. Sudan) This is one of the maps of the Balderas Plaintiffs.
A. Right.
MR. SUDAN: And would you focus in down into –
THE WITNESS: He doesn't have that plan up yet. There it is coming up.
MR. SUDAN: I think it's all up.
Q. (By Mr. Sudan) Can you look down in sort of – from San Antonio south?
MR. SUDAN: Can you go a little bit further north so we can get the extent of the district and go a little bit further?
Q. (By Mr. Sudan) Have you examined the compactness of the population in those counties as you move north from the border in Districts 16 (sic) and

32?

A. That's 15 and 32. What you see expressed in this kind of a map, and this is a good example of this and there are others that are similarly situated, is an attempt – as you move away from the Rio Grande River, the density of Hispanic populations declines, generally speaking, except for San Antonio and Houston and Dallas and Fort Worth and other places like that.

But in this 72-county area in order to get the additional Hispanic majority district, you have to string the districts north. And as I heard Lieutenant Governor Ratliff yesterday talk about why he didn't do that in his plan is you simply have very narrow corridors in plans – for example, District 15, part of Hidalgo and going all of the way virtually to the outskirts of Houston to do that.

And other districts do that. Take a look at 32. 32 is north. It divides Comal and Guadalupe Counties and goes on up – my glasses don't focus so well, but it goes two counties further north of Guadalupe to get another one of these districts.

So, you subordinate compactness to the goal of getting an additional Hispanic majority district.

Q. Are there any other tradition redistricting

criteria that in your opinion are sacrificed in your 15 and 32?

A. There is much less regard for the traditional principles of not subdividing counties, not subdividing cities. For example, in Comal and Guadalupe Counties,

if you go down to the intense level of looking at the precincts in those particular counties and you look at the ethnic concentration of persons in those particular districts, you will see that the persons being put into District 23 are decidedly more Hispanic versus persons being put into the light district number, which I forget on this, are more Anglo. So, you are dividing Anglo versus Hispanics.

JUDGE HIGGINBOTHAM: Can you zero in on Comal and that somewhat uneven baseline there?

To the west of there, yes?

Q. (By Mr. Sudan) Is that what you are referring to?

A. Yes. And what the TLC has done, it has given me maps of the ethnic make-up of the precinct, VTDs in that area. And you see a high correspondence between Hispanics in district 32 and non-Hispanics in District 21.

* * *

November 1, 2001, Afternoon Session

* * *

[Testimony of Dr. John Alford]

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* * *

Q. (By Mr. Taylor) I want to very quickly, Dr. Alford, touch on two other subjects, and then we will be through. Do you have any opinions on whether seven

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Hispanic districts on the border should be drawn by this Court?

A. I think the approach of placing the additional Hispanic districts in the area of Dallas is probably preferable to the additional South Texas district. I think there are – I think the plan to have the additional district in South Texas is a bold plan. I think it raises some issues about spreading that vote a little bit. You marginalize a little bit some of those districts.

If you are willing to take the gamble, I'm not sure that's all that big a problem. But what concerns me is the idea of creating a little bit more marginal districts in order to add a district in that area. And then when the district doesn't work, what happens with a lot of these districts is their partisanship becomes more tightly balanced. And there is potential then for the district to elect a Republican. And when it elects a Republican Hispanic,

you come back and you've got to redraw the district again. You either accept that risk that the district may or may not elect a Democrat or you're going to be a little careful about plugging in additional districts that narrow the partisan balance in the existing districts.

* * *

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MR. SMITH: Let me ask you to put up District 23 then, Mr. Ware.

Q. (By Mr. Smith) Now, District 23 in the Texas Plan is very largely unchanged from its current configuration; is that right?

A. That is correct.

Q. And Mr. Bonilla is still in it?

A. That is correct.

Q. Mr. Bonilla, according to your estimates, has been getting between 20 and 25 percent of the Hispanic vote in this district in recent elections; is that right?

A. I think he goes higher than that.

Q. Let me represent to you that in your report, it says that in 1998 he got 26 percent of the Hispanic vote and in 2000 it says he got 20 percent of the Hispanic vote?

A. All right.

Q. According to your analysis, therefore, he is not the candidate of choice of the Hispanics in this districts?

A. That is correct.

Q. In fact, you conclude in your report, do yo

not, that as long as the district stays this way and Mr. Bonilla is in it – well, let me back up on that

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question.

You conclude in your report that a Republican candidate running in this district only has to get 10 percent of the Hispanic vote in order to easily win this district; is that right?

A. Again, remember that this district is – the majority of the registered voters in this district are Hispanic.

Q. Yes, sir.

A. As I said in the report, so long as Hispanic turnout remains as low as it is, there is a lack of interest, and there is Hispanic cross-over – with low turnout, it doesn't take much Hispanic cross-over to elect Bonilla or another Hispanic Republican in this district. I don't think an Anglo Republican would be able to do what Mr. Bonilla is able to do. But in this case, you have a situation where the Hispanic turnout is very low relative to the registered voter proportion. So that is, I think a failure of cohesion.

Q. You said in your report, and I don't think you are disagreeing with this now even, that even if Hispanics vote 90 to 10 for one candidate, the Democratic candidate, the Republican candidate would still easily win this district?

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A. Again, if you are turning out very low – and we've just been through some examples of that. If

you're turning out a very low proportion of your registered vote, then you can vote 100 percent. Cohesion is more than just how you cast those votes. It's turning out to vote and supporting your candidate.

Q. So you define cohesion to include turnout factor as well as a question of whether you all vote together?

A. Honestly, we all know – if we didn't know it before, we do now, what the purpose of the cohesion column in the James (phonetic) test is. It's in a sequential sense to establish what is the underlying cause of the deprivation of voting rights. If a group constitutes a majority of the district and is turning out that vote and voting together and still losing, then you look to the nature of the drawing of the district itself.

This is an example where this is a district where when that vote has turned out before has elected Hispanic candidate of choice, that Hispanic candidate of choice lost to another Hispanic, you've now got a situation where – again, that cohesive voting and turnout could reverse that result. It's not a district that can't be won by Democrats. It's won by

other Democrats.

Q. Just for the record, your estimate of the percentage of the voters in that district in recent elections who are Anglos is between 57 and 64 percent?

A. If that's what it says.

Q. Now, you also studied turnout in some of the other Latino majority districts along the border area.

And those are districts with Spanish surnamed registered voter totals in the 60 to 65 percent range as they are configured in Plan 1044; is that right?

A. That's right.

Q. Your estimates of turnout in those districts also showed a number of examples of recent elections where in those proposed districts even with registration levels in the 60 to 65 percent range, Anglos are still a majority of the actual voters on election day?

A. That is correct.

Q. And you opine – it's your view as well that in those kinds of districts, even when you get the registration level up to 60 percent, there is still a substantial chance that Hispanics will not be able to elect a candidate of choice if they don't remain very,0 very cohesive; is that right?

A. In several of those district, it is possible

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for a Hispanic Republican to get a majority of the vote because a Hispanic Republican draws more cross-over vote. And as the Hispanic turnout remain low and the willingness to cross over and vote for a Hispanic Republican is high or increasing, it raises the possibility in those districts.

* * *